

2:00 PM

LINE 8

25-CIV-08993

WEBB RANCH, INC. VS. GARY WEBB AS TRUSTEE OF THE WEBB 2008 FAMILY TRUST,
ET AL.

WEBB RANCH, INC.

GARY WEBB AS TRUSTEE OF THE WEBB 2008 FAMILY TRUST

BRIAN R IRION

JOSEPH M. GOETHALS

HEARING FOR THE PURPOSE OF SELECTING APPRAISERS, SETTING THE BOND AMOUNT, AND DETERMINING
DEADLINES/SCHEDULING

TENTATIVE RULING:

The court rules on the selection of appraisers and setting of the bond and further scheduling as follows:

The court appreciates the cooperation between counsel and the agreements that they have reached.

Background. On June 10, 2026, the court conditionally granted Plaintiff Webb Ranch, Inc.'s (WRI) "Motion for Order Staying Involuntary Dissolution & Appointing Appraisers to Ascertain Value of Gary Webb's Shares." The June 10, 2026 Order stayed this litigation, pending resolution of the Corporation Code § 2000 appraisal proceeding, and set further hearing date of July 21, 2026 for the purpose of setting a bond amount, appointing appraisers, and addressing further scheduling. After considering the submissions, the court hereby orders the following:

\$120,000 bond. Within 30 days of service of notice of entry of this Order, WRI shall post a bond in the amount of \$120,000. Based upon the facts as the court understands them, this amount is reasonable to compensate Gary Webb if WRI does not buy out his shares.

At the prior (the June 2, 2026) hearing, WRI argued in favor of a \$25,000 bond, while Gary Webb sought a \$500,000 bond. Both parties have since significantly changed their position. Following a meet and confer, WRI now proposes a \$105,000 bond, while Gary Webb proposes a \$150,000 bond. The parties' calculations differ significantly. The parties have hugely different estimates of the appraisal costs, as well as very different estimates of Gary Webb's estimated attorney's fees during the appraisal proceeding. (Compare Hollenberg declaration with Irion declaration, with WRI estimating Webb's fees at \$15,000, and Webb estimating his fees at about \$150,000.)

The court believes that Webb's attorneys should not have to do as much work as they suggest (155 attorney hours and 60 paralegal hours seem excessive for the appraisal part of the action). The court finds their hourly rate reasonable for this case based upon their experience, but wants to make sure that there is no duplicative work and that if work can be performed by attorneys with a lower hourly rate, that those attorneys be used. However, most of the work will be done by

WRI providing documents and the appraisers doing their work, that is the purpose of the appraisers. The amount of \$60,000 charged by each appraiser (possibly totaling \$180,000 for three appraisals) seems high, especially in light of the information provided by WRI that there are no horses, ranch, and stables to value.

Three appraisers. Corporations Code § 2000, subdivision (c) instructs that “[t]he court shall appoint three disinterested appraisers to appraise the fair value of the shares owned by the moving parties ...” Following the June 10, 2026 hearing, the parties met and conferred and have agreed upon a method for selection of three neutral appraisers. Specifically, the parties propose that each side will nominate one neutral appraiser and, assuming that each nominee is acceptable to the court, these two party-chosen appraisers will then nominate a third neutral appraiser. Corporation Code section 2000, subdivision (c). This selection method appears to have been utilized with approval in *Abrams v. Abrams-Rubaloff & Associates, Inc.* (1980) 114 Cal.App.3d 240, 246.

Both WRI and Gary Webb have proposed that the court appoint the same appraiser that the parties previously used in the pre-litigation mediation with the Hon. Robert Foiles (Ret.). Specifically, Gary Webb has proposed M. Carter Johnson of Singleton Valuation; and WRI has proposed Joseph Orlando of Exit Strategies Group, Inc., each of which participated in the mediation. (See Hollenberg Decl., Ex. A [M. Carter Johnson CV]; Irion Decl., Ex. 1 [Joseph Orlando CV].)

The court approves of the parties’ proposal and hereby appoints M. Carter Johnson of Singleton Valuation and Joseph Orlando of Exit Strategies Group, Inc. as two of the three appraisers. These two party-designated appraisers shall then select a mutually acceptable third disinterested appraiser.

Further scheduling/deadlines. The court hereby sets the following schedule/deadline(s):

Within ten (10) of notice of entry of order, Johnson and Orlando shall file and serve a declaration affirming that they accept the appointment, they are disinterested, their hourly fee, the outline of the work that they propose to do, and the proposed cost.

Within thirty days of service of notice of entry of order, the two appointed appraisers shall select a third neutral appraiser and that third arbitrator shall file and serve a declaration with the information provided by the other two arbitrators;

Within forty-five days of notice of entry of order, the three appraisers shall file a timeline for completion of their task.

The court sets a case management conference for October 20, 2026 at 9:30 a.m. in Department 4 for a status update. Zoom appearances are allowed. A joint case management conference statement shall be filed by October 13, 2026.

All documents filed with the court shall also be emailed to Department 4 at
Dept4@sanmatocourt.org.

If any of these deadlines need to be modified, the appraisers or parties shall email Department 4 and counsel for the parties and/or appraisers with suggested modifications. If any party objects to the changes, they shall schedule an ex parte hearing.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for WRI shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 9

25-CIV-09351

ALEXANDER ROWLAND, ET AL. VS. ACE FUNDING SOURCE LLC

ALEXANDER ROWLAND
ACE FUNDING SOURCE LLC

STEVEN J. MIRSKY
BARUCH C. COHEN

MOTION TO BE RELIEVED AS COUNSEL FOR PLAINTIFFS ALEXANDER ROWLAND AND LERNALABS, INC.

TENTATIVE RULING:

The court rules on the motion of Steven J. Mirsky, Mirsky Corporate Advisors, APC to be relieved as counsel for plaintiffs Alexander Rowland, Lernalabs, Inc. as follows:

On the notice of motion filed April 13, 2026, plaintiff's counsel put the date of July 7, 2026 as the hearing date, but the clerk's office changed the hearing date to July 21, 2026. The court file shows two proofs of service: (1) filed April 13, 2026 showing proof of service on defense counsel on April 12, 2026 and (2) filed April 17, 2026 showing proof of service on plaintiffs on April 17, 2026. Thus, based upon the change of hearing date by the clerk, plaintiffs' counsel could not have provided proper notice of the July 21, 2026 hearing to defense counsel. It is unclear whether plaintiff was served with notice of the hearing date of July 7 or July 21, 2026. There is no amended proof of service on defense counsel of an amended notice with the court date. Therefore, it is unclear if plaintiffs and defense counsel received proper notice of the hearing date. (Cal. Rules of Court, rule 3.1110(b)(1).) Without proper notice on plaintiffs and defense counsel, the court cannot consider the motions. (See *Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205 [court lacks jurisdiction to rule on a motion that has not been properly noticed].)

Even if plaintiffs' counsel can show proof of service of proper service of the motion, the court has concerns regarding granting the motion because of the prejudice to plaintiffs. Based upon the stipulation of counsel, the court continued defendant's motion to enforce the mandatory forum selection clause and dismiss or stay for forum non conveniens until August 4, 2026. At that time, the court had no information regarding either motion. In reviewing this motion, the court notes: (1) the basis for the withdrawal is the non-payment of fees; (2) the complaint specifically alleges that venue is proper in this court because enforcement of the forum selection clause would be unreasonable and substantially diminish plaintiffs' unwaivable rights (complaint ¶¶ 12-26); thus plaintiffs' counsel had contemplated that defendant's motion could be brought, and to make the allegations in the complaint would have researched the issue and formulated the opposition to the motion; and (3) both plaintiffs, but especially Lernalabs, Inc. who is an entity and cannot appear pro per, would be prejudiced by having this potentially case dispositive motion heard two weeks after the motion to withdraw. Therefore, the court DENIES without prejudice the motion to withdraw.
